



DEPARTMENT OF AGRICULTURE

Inspection and Consumer Services Division

PACKAGING AND LABELING

8 CCR 1202-1

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

RULE I. PACKAGING AND LABELING

STATEMENT OF BASIS - LEGAL AUTHORITY -- Title 35, Article 14, Section 107(o). Colorado Revised Statutes 1973 as amended.

STATEMENT OF PURPOSE -- This Packaging and Labeling rule is in compliance with the Measurement Standards Act of 1983 and enables consumers to obtain accurate information as to the quantity of the contents and facilitates value comparisons.

1. DEFINITIONS

- 1.1 COMMODITY IN PACKAGE FORM - means a commodity put up or packaged in any manner in advance of sale in units suitable for either wholesale or retail sale. An individual item or lot of any commodity not in package form as defined in this rule but on which there is marked a selling price based on an established price per unit of weight or of measure, shall be construed to be a commodity in package form. Where the term "package" is used in this rule, it shall be construed to mean "commodity in package form" as herein defined.
- 1.2 CONSUMER PACKAGE OF CONSUMER COMMODITY - means a commodity in package form that is customarily produced or distributed for sale through retail sales agencies or instrumentalities for consumption by individuals or use by individuals for the purposes of personal care or in the performance of services ordinarily rendered in or about the household or in connection with personal possessions.
- 1.3 INCH POUND SYSTEM - means the United States customary system of weights and measures as approved by the United States Department of Commerce.
- 1.4 LABEL - means any written, printed, or graphic matter affixed to, applied to, attached to, blown into, formed, molded into, embossed on, or appearing upon or adjacent to a consumer commodity or a package containing any consumer commodity, for purposes of branding, identifying, or giving any information with respect to the commodity or to the contents of the package, except that an inspector's tag or other non-promotional matter affixed to or appearing upon a consumer commodity shall not be deemed to be a label requiring the repetition of label information required by this rule.
- 1.5 METRIC SYSTEM (SI or SI units) -- means the Systeme Internationale System of Units as established for the United States by the Secretary of Commerce.
- 1.6 MULTI-UNIT PACKAGE -- means a package containing two or more individual packages of the same commodity, in the same quantity, with the individual packages intended to be sold as part of the multi-unit package but capable of being individually sold in full compliance with all requirements of this rule.

- 1.7 NON-CONSUMER PACKAGE: PACKAGE OF NON-CONSUMER COMMODITY -- means any commodity in package form other than a consumer package, and particularly a package intended solely for industrial or institutional use or for wholesale distribution.
- 1.8 PRINCIPAL DISPLAY PANEL OR PANELS -- means that part or those parts, of a label that is, or are, so designed as to most likely be displayed, presented, shown, or examined under normal and customary conditions of display and purchase. Wherever a principal display panel appears more than once on a package, all requirements pertaining to the "principal display panel" shall pertain to all such "principal display panels."
- 1.9 RANDOM WEIGHT PACKAGE -- means a package that is one of a lot, shipment or delivery of packages of the same consumer commodity with varying weight; that is, packages of the same consumer commodity with no fixed pattern of weight.

2. INFORMATION REQUIRED ON PACKAGES - GENERAL

- 2.1 Any package kept for the purpose of sale or offered or exposed for sale shall bear on the outside of the package a definite, plain, and conspicuous declaration of:
- (a) the identity of the commodity in the package, unless the same can easily be identified through the wrapper or container.
 - (b) the quantity of contents in terms of weight, measure, or count.
 - (c) the name and place of business of the manufacturer, packer, or distributor, in the case of any package kept, offered, or exposed for sale, or sold in any place other than on the premises where packed.
- 2.2 This shall not apply to:
- (a) inner wrappings not intended to be individually sold to the consumer.
 - (b) shipping containers or wrapping used solely for the transportation of any commodities in bulk or in quantity to manufacturers, packers, or processors, or to wholesale or retail distributors, but in no event shall this exclusion apply to packages of consumer or nonconsumer commodities, as defined herein.
 - (c) auxiliary containers or outer wrappings used to deliver packages of such commodities to retail customers if such containers or wrappings bear no printed matter pertaining to any particular commodity.
 - (d) containers used for retail tray pack displays when the container itself is not intended to be sold (e.g. the tray that is used to display individual envelopes of seasonings, gravies, etc., and the tray itself is not intended to be sold), or
 - (e) open carriers and transparent wrappers or carriers for containers when the wrappers or carriers do not bear any written, printed, or graphic matter obscuring the label information required by this article.
 - (f) packages when the unit of count is less than six (6) count and the commodity or article is clearly visible for counting when in its container, or the weight is less than 1 oz. avoirdupois and/or the measure is less than 1 oz. liquid or dry volume.

3. DECLARATION OF IDENTITY AND RESPONSIBILITY: CONSUMER PACKAGES

- 3.1 A separate declaration of identity on a consumer package shall appear on the principal display panel, and shall positively identify the commodity in the package by its common or usual name, description, generic term, or the like, shall not be misleading or deceptive and shall appear generally parallel to the base on which the package rests as it is designed to be displayed.
- 3.2 A declaration of identity on a non-consumer package shall appear on the outside of a package, shall positively identify the commodity in the package by its common or usual name, description, generic term, or the like and shall not be misleading or deceptive.
- 3.3 Meat cuts shall be limited to those terms listed in the uniform retail meat industry standards.
- 3.4 Any package kept, offered, or exposed for sale, or sold, at any place other than on the premises where packed shall specify conspicuously on the label of the package the name and address of the manufacturer, packer, or distributor. The name shall be the actual corporate name; or, when not incorporated, the name under which the business is conducted. The address shall include street address, city, state, and ZIP code; however, the street address may be omitted, if this is shown in a current directory or telephone directory.
- 3.5 If a person manufactures, packs, or distributes a commodity at a place other than his principal place of business, the label may state the principal place of business in lieu of the actual place where the commodity was manufactured or packed or is to be distributed, unless such statement would be misleading. Where the commodity is not manufactured by the person whose name appears on the label, the name shall be qualified by a phrase that reveals the connection such person has with such commodity such as "Manufactured for and packed by _____", "Distributed by _____", or any other wording of similar import that expresses the facts.

4. REPEALED

5. DECLARATION OF QUANTITY: CONSUMER PACKAGES

- 5.1 **General** - The metric and inch-pound systems of weights and measures are recognized as proper systems to be used in the declaration of quantity. Units of both systems may be presented in a dual declaration of quantity.
- 5.2 **Largest Whole Unit** -- where this article requires that the quantity declaration be in terms of the largest whole unit, the declaration shall, with respect to a particular package, be in terms of the largest whole unit of weight or measure, with any remainder expressed following the requirements of section 5.3.

5.3 USE OF FRACTIONS

- (a) **Metric:** a metric statement in a declaration of net quantity of contents of any consumer commodity may contain only decimal fractions.
- (b) **Inch-Pound:** an inch-pound statement of net quantity of contents of any consumer commodity may contain common or decimal fractions. A common fraction shall be in terms of halves, quarters, eighths, sixteenths, or thirty-seconds, except that if there exists a firmly established general consumer usage and trade custom of employing different common fractions in the net quantity declaration of a particular commodity, they may be employed, and if linear measurements are required in terms of yards or feet, common fractions may be in terms of thirds.
- (c) **Common Fractions:** a common fraction shall be reduced to its lowest term (e.g. 2/4 becomes 1/2).

(d) **Decimal Fractions:** a decimal fraction shall not be carried out to more than three places.

(e) **Inch-Pound units** shall be in common or decimal fractions of such largest whole unit, or in the next smaller whole unit, or units, with any further remainder in terms of common or decimal fractions of the smallest unit present in the quantity declaration. Metric units in decimal fractions of such largest whole units.

5.4 Net Quantity - A declaration of net quantity of the commodity in the package, exclusive of wrappers and any other material packed with such commodity, shall appear on the principal display panel of the consumer package and, unless otherwise specified in this article shall be in terms of the largest whole unit

5.5 Use of " Net Weight " - The term "net weight" shall be used in conjunction with the declaration of quantity in units of weight. The term may either precede or follow the declaration of weight.

5.6 Lines of Print or Type - A declaration of quantity may appear on one or more lines of print or type.

5.7 Terms: Volume, Weight, Count, or Measure - The declaration of the quantity of a particular commodity shall be expressed in terms of liquid measure if the commodity is liquid, or dry measure if the commodity is dry, or in terms of weight if the commodity is solid, semi-solid, viscous, or a mixture of solid and liquid, or in terms of numerical count, linear measure or area.

However, if there exists a firmly established general consumer usage and trade custom with respect to the terms used in expressing a declaration of quantity of a particular commodity, such declaration of quantity may be expressed in its traditional terms, if such traditional declaration gives accurate and adequate information as to the quantity of the commodity.

Combination Declaration --

(a) A declaration of quantity in terms of weight or volume shall be combined with appropriate declarations of the measure, count, and size of the individual units unless a declaration of weight alone is fully informative.

(b) A declaration of quantity in terms of measure shall be combined with appropriate declarations of the weight, volume, count and size of the individual units unless a declaration of measure alone is fully informative.

(c) A declaration of quantity in terms of count shall be combined with appropriate declarations of the weight, volume, measure, and size of the individual units unless a declaration of count alone is fully informative.

5.8 WHEN INCH-POUND SYSTEM OF WEIGHT OR MEASURE IS USED --

A declaration of quantity shall be:

(a) in units of weight, shall be in terms of the avoirdupois pound or ounce.

(b) in units of liquid measure, shall be in terms of the United States gallon of 231 cubic inches or liquid-quart, liquid-pint, or fluid-ounce subdivisions of the gallon and shall express the volume at 68°F except in the case of a commodity that is normally sold and consumed while frozen, for which the declaration shall express the volume at the frozen temperature, and except also in the case of a commodity that is normally sold in the refrigerated state, for which the declaration shall express the volume at 40°F.

(c) in units of linear measure, shall be in terms of the yard, foot or inch.

- (d) in units of area measure, shall be in terms of the square yard, square foot, or square inch.
- (e) in units of volume measure, shall be in terms of the cubic yard, cubic foot, or cubic inch.
- (f) in units of dry measure shall be in terms of the United States bushel of 2150.42 cubic inches, or peck, dry-quart, and dry-pint subdivisions of the bushel.

5.9 Symbols and Abbreviations - Any of the following symbols and abbreviations, and none other shall be employed in the quantity statement on a packaged commodity:

avoirdupois	Avdp	ounce	Oz
cubic	Cu	pint	Pt
feet or foot	Ft	pound	Lb
fluid	Fl	quart	Qt
gallon	Gal	square	Sq
inch	In	weight	Wt
Liquid	Liq	yard	Yd

(There normally are no periods following--nor plural forms of--symbols. For example, "oz" is the symbol for both "ounce" and "ounces." Both upper and lower case letters are acceptable.)

5.10 Units of Two or More Meanings - When the term "ounce" is employed in a declaration of liquid quantity the declaration shall identify the particular meaning of the term by the use of the term "fluid" however such distinction may be omitted when by association of terms the proper meaning is obvious, (for example, as in 1 pint 4 ounces). Whenever the declaration of quantity is in terms of the dry pint or dry quart, the declaration shall include the word "dry".

5.11 WHEN METRIC UNITS OF WEIGHT OR MEASURES ARE USED --

A declaration of quantity shall be:

- (a) in units of weight shall be in terms of the kilogram, gram, or milligram.
- (b) in units of liquid measure shall be in terms of the liter or milliliter, and shall express the volume at "20°C", except in the case of petroleum products, or distilled spirits for which the declaration shall express the volume at "15.6 ° C", except in the case of a commodity that is normally sold and consumed while frozen, for which the declaration shall express the volume at the frozen temperature, and except also in the case of a commodity that is normally sold in the refrigerated state, for which the declaration shall express the volume at "4°C."
- (c) in units of linear measure shall be in terms of the meter, centimeter, or millimeter.

The meter/liter spellings are used in this article. However, the metre/litre spellings are also acceptable.

- (d) in units of area measure shall be in terms of the square meter, square decimeter, square millimeter, or square centimeter.
- (e) in units of volume other than liquid measure shall be in terms of the liter and milliliter, except that the terms cubic meter and cubic centimeter will be used only when specifically designated as a method of sale.

5.12 Symbols - Any of the following symbols for metric units, and none other may be employed in the quantity statement on a packaged commodity:

kilogram	kg	meter	m
gram	g	centimeter	cm
milligram	mg	millimeter	mm
liter	L	square meter	m ²
milliliter	mL	square centimeter	cm ²
cubic meter	m ³	cubic centimeter	cm ³

- (a) Symbols, except for liter, are not capitalized, unless the unit is derived from a proper name. Periods should not be used after the symbol. Symbols are always written in singular form - do not add "s" to express the plural when the symbol is used.
- (b) The "L" symbol for liter and "mL" symbol for milliliter are preferred; however the "L" symbol for liter and "ML" symbol for milliliter are permitted.

6. PRESCRIBED UNITS - DECLARATION OF QUANTITY FOR CONSUMER PACKAGES (Inch-Pound System)

6.1 **Less than 1 square foot, 1 pound, or 1 pint** – The declaration of quantity shall be expressed in the following terms:

- (a) In the case of length measure of less than 1 foot, in inches and fractions of inches;
- (b) in the case of area measure of less than 1 square foot, in square inches and fractions of square inches;
- (c) in the case of weight of less than 1 pound, in ounces and fractions of ounces;
- (d) in the case of liquid measure of less than 1 pint, in fluid ounces and fractions of fluid ounces; provided that the quantity declaration appearing on a random package may be expressed in terms of decimal fractions of the largest appropriate unit, the fraction being carried out to not more than three decimal places.

6.2 **DUAL QUANTITY DECLARATION, Weight** - On packages containing 1 pound or more, the declaration shall be expressed in terms of the largest whole unit with any remainder expressed in ounces and fractions of the ounce, or in fractions of the pound.

- 6.3 **DUAL QUANTITY DECLARATION, Volume** - On packages containing 1 pint or more, but less than 1 gallon, the declaration shall be expressed in the largest whole unit (quarts, quarts and pints, or pints as appropriate) with any remainder expressed in fluid ounces or fractions of the pint or quart, except that 2 qt may be declared as $\frac{1}{2}$ gal, and it shall be optional to include an additional expression of net quantity in fluid ounces.
- 6.4 **DUAL QUANTITY DECLARATION, Linear Measure** - On packages containing 1 foot or more, the declaration shall be expressed in terms of the largest whole unit (a yard or a foot) with any remainder expressed in inches and, fractions of the inch or in fractions of the foot or yard, except that it shall be optional to include a statement of length in terms of inches.
- 6.5 **DUAL QUANTITY DECLARATION, Area Measure** - On packages containing 1 square foot or more but less than 4 square feet, the declaration shall be expressed in square feet with any remainder expressed in square inches and fractions of a square inch or in fractions of a square foot.
- 6.6 WHEN 4 SQUARE FEET, 4 POUNDS, 1 GALLON, OR MORE IS TO BE DECLARED, IT SHALL BE EXPRESSED AS FOLLOWS:
- (a) area measure of 4 square feet or more, expressed in terms of the largest whole unit (e.g. square yards or square feet) with any remainder expressed in square inches and fractions of a square inch or in fractions of the square foot or square yard.
 - (b) liquid measure of 1 gallon or more, the declaration of quantity shall be expressed in terms of the largest whole unit (gallons followed by fractions of a gallon or by the next smaller whole unit or units).
- 6.7 **Bi-dimension commodities** - For bi-dimensional commodities (including roll-type commodities) the quantity declaration shall be expressed in both SI and inch-pound units of measure as follows:
- (a) if the area is less than 929 cm^2 (1 square foot), in terms of length and width (expressed in the largest whole unit for SI and in linear inches, and fractions of linear inches for inch-pound);
 - (b) if the area is at least 929 cm^2 (1 square foot) but less than 37.1 dm^2 (4 square feet), in terms of area (expressed in the largest whole unit for SI and in square inches for inch-pound) followed by a declaration of the length and width in terms of the largest whole unit. A bi-dimensional commodity of 4 inches (10 cm) width or less, the declaration of net quantity shall be expressed in terms of width and length in linear measure; no declaration of area is required. A dimension of less than 2 feet may be stated in inches, and commodities consisting of usable individual units (except roll-type commodities with individual usable units created by perforations) require a declaration of unit area but not a declaration of total area of all such units;
 - (c) if the area is 37.1 dm^2 (4 square feet) or more, in terms of area (expressed in the largest whole unit for SI and in square feet for inch-pound) followed by a declaration of the length and width in terms of the largest whole unit, provided, that no declaration of area is required for a bi-dimensional commodity with a width of 4 inches (10 cm) or less. Bi-dimensional commodities, with a width of 4 inches (10 cm) or less, shall have the width expressed in linear inches and fractions thereof, and length shall be expressed in the largest whole unit (yard or foot) with any remainder in terms of fractions of the yard or foot, except that it shall be optional to express the length in the largest whole unit, followed by a statement of length in inches or to express the length in inches followed by a statement of length in the largest whole unit. For example: 5 cm x 9.14 m (2 in x 360 in (10 yd) an inch-pound dimension of less than 2 feet may be stated in inches.

- (d) no declaration of area is required for commodities for which the length and width measurements are critical in terms of end use (such as wallpaper border) if such commodities clearly present the length and width measurements on the label.

6.8 PRESCRIBED UNITS FOR METRIC SYSTEM -- As Follows:

When less than 1 meter, 1 square meter, 1 kilogram, or 1 liter -- the declaration of quantity shall be expressed in terms of:

- (a) in the case of length measure of less than 1 meter: in centimeters or millimeters;
- (b) in the case of area measure of less than 1 square meter; in square centimeters and decimal fractions of square centimeters;
- (c) in the case of mass of less than 1 kilogram, in grams and decimal fractions of a gram, but if less than 1 gram, then in milligrams;
- (d) in the case of liquid or dry measure of less than one liter, in milliliters; provided, that the quantity declaration appearing on a random package may be expressed in terms of decimal fractions of the largest appropriate unit, the fraction being carried out to not more than three decimal places.

6.9 **1 METER, 1 SQUARE METER, 1 KILOGRAM, 1 LITER OR MORE** -- To be used in the case of:

- (a) length measure of 1 meter or more; in meters and decimal fractions to not more than three places;
- (b) area measure of 1 square meter or more; in square meters and decimal fractions to not more than three places;
- (c) mass of 1 kilogram or more; in kilograms and decimal fractions to not more than three places;
- (d) liquid or dry measure of 1 liter or more; in liters and decimal fractions to not more than three places.

6.10 **COUNT: PLY** -

- (a) If the commodity is in individually usable units of one or more components or plies, the quantity declaration shall, in addition to complying with other applicable quantity declaration requirements of this rule, include the number of plies and total number of usable units.
- (b) Roll-type commodities, when perforated so as to identify individual usable units, shall not be deemed to be made up of usable units; however, such roll type commodities shall be labeled in terms of total area measurement, number of plies, count of usable units, and dimensions of a single usable unit.

7. SUPPLEMENTARY QUANTITY DECLARATIONS

- 7.1 The required quantity declaration may be supplemented by one or more declarations of weight, measure, or count, such declaration appearing other than on a display panel. Such supplemental statement of quantity of contents shall not include any term qualifying a unit of weight, measure, or count that tends to exaggerate the amount of commodity contained in the package (e.g "giant" quart, "larger" liter, "full" gallon, "when packed" "minimum" or words of similar import).

- 7.2 When using combined metric and inch-pound declarations an equivalent statement of the net quantity of contents in terms of either the inch-pound or metric system is not regarded as a supplemental statement and such statement may also appear on the principal display panel; provided, that it conforms to section 5 of this rule.
- 7.3 Rounding - In all conversions for the purpose of showing an equivalent metric or inch-pound quantity to a rounded customary or metric quantity, the number of significant digits retained should be such that accuracy is neither sacrificed nor exaggerated.
- 7.4 Qualification of Declaration Prohibited - In no case shall any declaration of quantity be qualified by the addition of the words "when packed," "minimum," "not less than," or any words of similar import; nor shall any unit of weight, measure, or count be qualified by any terms that tends to exaggerate the amount of commodity (such as "jumbo" "giant" "full" or the like).

8. DECLARATION OF QUANTITY: NON-CONSUMER PACKAGES - GENERAL--

- 8.1 **General** - The metric and inch-pound system of weights and measures are recognized as proper systems to be used in the declaration of quantity. Units of both systems may be combined in a dual declaration of quantity, and although non-consumer packages under this article bear only metric declarations, this should not be construed to supersede any labeling requirements specified in Federal law.
- 8.2 **Location** - A non-consumer package shall bear on the outside a declaration of the net quantity of contents. Such declaration shall be in terms of the largest whole unit as set forth in section 5 of this rule.
- 8.3 **Terms: Weight, Liquid Measure, Dry Measure, or Count** - The declaration of the quantity of a particular commodity shall be expressed in terms of liquid measure, if the commodity is liquid; or, in the term of dry measure, if the commodity is dry; or, in terms of weight, if the commodity is solid, semisolid, viscous, or a mixture of solid and liquid, or in terms of numerical count. However, if there exists a firmly established general consumer usage and trade custom with respect to the terms used in expressing a declaration of quantity of a particular commodity, such declaration of quantity may be expressed in its traditional terms, if such traditional declaration gives accurate and adequate information as to the quantity of the commodity.
- 8.4 When using inch-pound units relating to a declaration of quantity they shall be expressed as set forth in rule 5.8.
- 8.5 **Symbols and Abbreviations** -- Any generally accepted symbol and abbreviation of a unit name may be employed in the quantity statement on a package of commodity as set forth in rule 5.9.
- 8.6 When using metrics units relating to weights and measures a declaration shall be expressed as set forth in rule 5.11.
- 8.7 **Symbols** -- Only those symbols as detailed in rule 5.12.
- 8.8 **Character of Declaration: Average** - The average quantity of contents in the package of a particular lot, shipment, or delivery shall at least equal the declared quantity, and no unreasonable shortage in any single package shall be permitted, even though overages in other packages in the same shipment, delivery, or lot compensate for such shortage.

9. LABELING - PROMINENCE AND PLACEMENT: CONSUMER PACKAGES --

- 9.1 **General** - All information required to appear on a consumer package shall appear thereon in the English language and shall be prominent, definite, and plain, and shall be conspicuous as to size

and style of letters and numbers and as to color of letters and numbers in contrast to color of background. Any required information that is either in hand lettering or hand script shall be entirely clear and equal to printing in legibility.

- 9.2 **Location** - The declaration of declarations or quantity of the contents of a package shall appear in the bottom 30 percent of the principal display panel or panels. For cylindrical containers see additional requirements in rule 9.7(b).
- 9.3 **Style of Type or Lettering** - The declaration or declarations of quantity shall be in such a style of type or lettering as to be boldly, clearly, and conspicuously presented with respect to other type, lettering, or graphic material on the package, except that a declaration of net quantity blown, formed, or molded on a glass or plastic surface is permissible when all label information is blown, formed, or molded on the surface.
- 9.4 **Color Contrast** - The declaration or declarations of quantity shall be in a color that contrasts conspicuously with its background, except that a declaration of net quantity blown, formed, or molded on a glass or plastic surface shall not be required to be presented in a contrasting color if no required label information is on the surface in a contrasting color.
- 9.5 **Free Area** - The area surrounding the quantity declaration shall be free of printed information:
- (a) above and below, by a space equal to at least the height of the lettering in the declaration, and
 - (b) to the left and right, by a space equal to twice the width of the letter "N" of the style and size of type used in the declaration.
- 9.6 **Parallel Quantity Declaration** - The quantity declaration shall be presented in such a manner as to be generally parallel to the declaration of identity and to the base on which the package rests as it is designed to be displayed.
- 9.7 **In calculating the area of principal display panel for purpose of type size, the area of the principal display panel shall be:**
- (a) in the case of a rectangular container, one entire side which properly can be considered to be the principal display panel, the product of the height times the width of that side;
 - (b) In the case of a cylindrical or nearly cylindrical container, 40 percent of the product of the height of the container times the circumference; or
 - (c) in the case of any other shaped container, 40 percent of the total surface of the container, unless such container presents an obvious principal display panel (e.g. the top of a triangular or circular package of cheese, or the top of a can of shoe polish), in which event the area shall consist of the entire such surface.
- Determination of the principal display panel shall exclude tops, bottoms, flanges at tops and bottoms of cans, and shoulders and necks of bottles or jars.
- 9.8 **Minimum Height of Numbers and Letters** - The height of any letter or number in the required quantity declaration shall not be less than that shown in Table 1 with respect to the area of the panel, and the height of each number of a common fraction shall meet one-half the minimum height standards; when upper and lowercase or all lowercase letters are used, it is the lowercase " o " or its equivalent that shall meet the minimum height requirement. When upper and lowercase or all lowercase letters are used in metric symbols, it is the uppercase " L, "

lowercase " d, " or their equivalent in the print or type that shall meet the minimum height requirement. However no letter shall be less than 1.6 millimeters (1/16 inch) in height.

(a) No number or letter shall be more than three times as high as it is wide.

TABLE 1. Minimum Height of Numbers and Letters

Area of principal display panel	Minimum height of numbers and letters	Minimum height; label information blown, formed, or molded on surface of container
5 square inches (in ²) and less	1/16 inch	1/8 inch
Greater than 5 in ² and not greater than 25 in ²	1/8 inch	3/16 inch
Greater than 25 in ² and not greater than 100 in ²	3/16 Inch	1/4 inch
Greater than 100 in ² and not greater than 400 in ²	1/4 inch	5/16 inch
Greater than 400 in ²	1/2 inch	9/16 inch

10. LABELING - PROMINENCE AND PLACEMENT FOR NON-CONSUMER PACKAGES

General - All information required to appear on a non-consumer package shall be definitely and clearly stated thereon in the English language. Any required information that is either in hand lettering or hand script shall be entirely clear and equal to printing in legibility.

11. LABELING REQUIREMENTS FOR SPECIFIC CONSUMER COMMODITIES, PACKAGES, CONTAINERS

- 11.1 **Display Card Package** - For an individual package affixed to a display card, or for a commodity and display card together comprising a package, the type size of the quantity declaration is governed by the dimensions of the display card.
- 11.2 **Eggs** - When cartons containing 12 eggs have been designed so as to permit division in half by the retail purchaser, the required quantity declaration shall be so positioned as to have its context destroyed when the carton is divided.
- 11.3 **Aerosols and Similar Pressurized Containers** - The declaration of quantity on an aerosol package, and on a similar pressurized package, shall disclose the net quantity of the commodity (including propellant), in terms of weight, that will be expelled when the instructions for use as shown on the container are followed.
- 11.4 **Multi-unit Packages** - Any package containing more than one individual "commodity" in package form of the same commodity, shall bear on the outside of the package a declaration of:

- (a) the number of individual units,
- (b) the quantity of each individual unit, and
- (c) the total quantity of the contents of the multi-unit package.

11.5 **Combination Packages** -

Any packages containing individual units of dissimilar commodities (such as an antiquing or a housecleaning kit, for example) shall bear on the label of the package a quantity declaration for each unit (e.g. sponges and cleaner: 2 sponges, each 10 cm x 15 cm x 2 cm. 1 box cleaner, net weight 150g).

11.6 **Variety Packages** - Any package containing individual units of reasonably similar but not identical commodities shall bear on the label of the package a declaration of the number of units for each identical commodity and the total quantity of commodity in the package by weight, volume, or measure, (e.g. plastic tableware: 4 spoons, 4 forks, 4 knives, 12 pieces total).

11.7 **Cylindrical Containers** - In the case of cylindrical or nearly cylindrical containers, information required to appear on the principal display panel shall appear within that 40 percent of the circumference which is most likely to be displayed, presented, shown, or examined under customary conditions of display for retail sale.

Measurement of Container-Type Commodities, How Expressed

11.8 **General** - Commodities designated and sold at retail to be used as containers for other materials or objects, such as bags, cups, boxes, and pans, shall be labeled with the declaration of net quantity as follows:

- (a) For bag-type commodities, in terms of count, followed by linear dimensions of the bag (whether packaged in a perforated roll or otherwise)

Inch-Pound units – in inches, except that a dimension of 2 feet or more will be expressed in feet with any remainder in terms of inches or common or decimal fractions of the foot, or

Metric units – in millimeters or centimeters except a dimension of 1 meter or more will be expressed in meters with the remainder in terms of decimal fractions of the meter.

- (b) When the unit bag is characterized by two dimensions because of the absence of a gusset, the width and length will be expressed:

For Example:

25 Bags, 12.7 cm x 10 cm (5 in x 4 in) or

50 Bags, 75 cm x 1.2 m (2.5 ft x 3.9 ft)

- (c) When the unit bag is gusseted, the dimensions will be expressed as width, depth, and length

For Example:

25 Bags, 43 cm x 10 cm x 50 cm (17 in x 4 in x 20 in) or

100 Bags, 50.8 cm x 30.4 cm x 76.2 cm (20 in x 12 in x 2.5 ft)

- (d) For other square, oblong, rectangular, or similarly shaped containers, in terms of count followed by length, width, and depth, except depth need not be listed when less than 5 centimeters or 2 inches (e.g. 2 PANS, 20 cm x 20 cm (8 in X 8 in)).

Notwithstanding the above requirements, the net quantity statement for containers such as cups will be listed in terms of count and liquid capacity per unit (e.g. 24 CUPS, 177 mL (6 fl oz) CAPACITY).

- 11.9 **Capacity** - When the functional use of the container is related by label reference in standard terms of measure to the capability of holding a specific quantity of substance or class of substances such references shall be a part of the net quantity statement and shall specify capacity as follows:

- (a) Inch-Pound units:

Liquid measure for containers which are intended to be used for liquids, semisolids, viscous materials, or mixture of solids and liquids. The expressed capacity will be stated in terms of the largest whole unit (gallon, quart, pint, fluid ounce, with any remainder in terms of the common decimal fraction of that unit) (e.g. Freezer Boxes - 4 BOXES, 946 mL capacity, 15 cm x 15 cm x 10 cm (1 qt capacity, 6 in x 6 in x 4 in)).

Dry measure for containers which are intended to be used for solids the expressed capacity will be stated in terms of the largest whole unit (bushel, peck), with any remainder in terms of the common or decimal fraction of that unit. (e.g. leaf bags - 8 BAGS, 211 L capacity, 1.21 m x 1.52 m (6 bu capacity, 4 ft x 5 ft)).

Where containers are used as liners for other more permanent containers, in the same terms as are normally used to express the capacity of the more permanent containers, (e.g. Garbage Can Liners - 10 LINERS, 76.2 cm x 93.9 cm, fits up to 113 L cans (2 ft 6 in, fits up to 30 gal cans)).

- (b) Metric units - Volume measure for all containers and liners. The expressed capacity will be stated in terms of milliliters, except that a quantity of 1 liter or more shall be expressed in liters with the remainder in terms of decimal fractions of the liter.

- 11.10 **Terms** - For the purpose of this section, the use of the terms "CAPACITY," "DIAMETER," and "FLUID" is optional.

Textile Products, Threads and Yarns

- 11.11 **Wearing Apparel** - Wearing apparel (including non-textile apparel and accessories such as leather goods and footwear) sold as single-unit items, or if normally sold in pairs (such as hosiery, gloves, and shoes) sold as single-unit pairs, shall be exempt from the requirements for a net quantity statement by count.

- 11.12 **Textiles** - Bed sheets, blankets, pillowcases, comforters, quilts, bedspreads, mattress covers and pads, afghans, throws, dresser and other furniture scarves, tablecloths and napkins, flags, curtains, drapes, dishtowels, dishcloths, towels, face cloths, utility cloths, bath mats, carpets and rugs, pot holders, fixture and appliance covers, non-rectangular diapers, slip covers, etc., shall be exempt from the requirements of rule 6.7 and 6.10.

Provided, that

- (a) The quantity statement for fitted sheets and mattress covers shall state, in centimeters and inches, the length and width of the mattress for which the item is designed, such as

"twin," "double," "king," etc. (e.g. Double Sheet for 137 cm x 190 cm (54 in x 75 in) mattress).

- (b) The quantity statement for flat sheets shall state in centimeters and inches the length and width of the mattress for which the sheet is designed, followed in parentheses by a statement, in centimeters and inches, of the length and width of the finished sheet. The quantity statement shall also state the size designation of the mattress for which the sheet is designed such as "twin," "double," "king," etc. (e.g. Twin Flat Sheet for 99 cm x 190 cm (39 in x 75 in) Mattress 167 cm x 244 cm (66 in x 96 in) finished size).
- (c) The quantity statement for pillowcases shall state in centimeters and inches the length and width of the pillow for which the pillowcase is designed, followed in parentheses by a statement, in centimeters and inches, of the length and width of the finished pillowcase. The quantity statement also shall state, the size designation of the pillow for which pillowcase is designed, such as "youth," "standard" "queen," etc. if the item is intended to fit such pillows. (e.g. Standard Pillowcase for 51 cm x 66 cm (20 in x 26 in) pillow, 51 cm x 76 cm (20 in x 30 in) finished size).
- (d) The quantity statement for blankets, comforters, quilts, bedspreads, mattress pads, afghans, and throws shall state, in centimeters and inches, the length and width of the finished item. The quantity statement shall also state the length of any ornamentation and the size designation of the mattress for which the item is designed if it is intended to fit, for example a "twin," "double," "king," etc. mattress.
- (e) The quantity statement for tablecloths and napkins shall state, in centimeters and inches, the length and width of the finished item. The quantity statement also may state parenthetically, in centimeters and inches, the length and width of the item before hemming and be properly identified as such.
- (f) The quantity statement for curtains, drapes, flags, furniture scarves, etc. shall state, in centimeters and inches, the length and width of the finished item. The quantity statement also may state parenthetically, in centimeters and inches, the length of any ornamentation.
- (g) The quantity statement for carpets and rugs shall state, in meters and feet, with any remainder in decimal fractions of the meter for metric sizes or common or decimal fractions of the foot or in inches for inch-pound sizes, the length and width of the item. The quantity statement also may state parenthetically, in centimeters and inches, the length of any ornamentation.
- (h) The quantity statement for woven dishtowels, dishcloths, towels, face cloths, utility cloths, bath mats, etc. shall state in centimeters and inches, the length and width of the item. The quantity statement for such items, when knitted, need not state the dimensions.
- (i) The quantity statement for textile products such as pot holders, fixture and appliance covers, non-rectangular diapers, slip covers, etc. shall be stated in terms of count and may include size designations and dimensions.
- (j) The quantity statement for other than rectangular textile products identified in (a) through (h) shall state the geometric shape of the product and the dimensions which are customarily used in describing such geometric shape, (e.g. Oval Tablecloth 177 cm x 254 cm (70 in x 100 in) representing the maximum length and width in this case).

- (k) The quantity statement for packages of remnants of textile products of assorted sizes, when sold by count, shall be accompanied by the term "irregular dimensions" and the minimum size of such remnants.

11.13 Repealed

11.14 Repealed

11.15 **Sewing Threads, Handicraft Threads, and Yarns** - Sewing and handicraft threads and yarns shall be labeled as follows:

- (a) The net quantity statement for sewing and handicraft threads shall be expressed in terms of meters and yards.
- (b) The net quantity statement for yarns shall be expressed in terms of mass or weight.
- (c) Thread products may, in lieu of name and address, bear a trademark, symbol, brand, or other mark that positively identifies the manufacturer, packer, or distributor, provided that such marks, employed to identify the vendor, shall be filed with the commissioner.
- (d) Each unit of industrial thread shall be marked to show its net measure in terms of meters and yards or its net weight in terms of kilograms or grams and avoirdupois pounds or ounces, except that ready-wound bobbins which are not sold separately, shall not be required to be individually marked to show the number of bobbins contained therein and the net meters or yards of thread on each bobbin.

11.16 **Packaged Seed** - Packages of seeds intended for planting with net contents of less than 225 g or 8 oz shall be labeled in full accord with this article except as follows:

- (a) The quantity statement shall appear in the upper thirty percent of the principal display panel.
- (b) The quantity statements shall be in terms of the largest whole unit of the metric system for all weights up to seven grams, and in grams and in ounces for all other weights less than 225 grams or eight ounces.
- (c) The quantity statement for coated seed, encapsulated seed, pelletized seed, pre-planters, seed tapes, etc. shall be in terms of count.

12. EXEMPTIONS

12.1 Whenever any consumer package or consumer commodity is exempted from the requirements for dual quantity declaration, the net quantity required to appear on the package shall be in terms of the largest whole unit.

12.2 **Random Packages** - A random package bearing a label conspicuously declaring the net weight, the unit price, and the total price shall be exempt from the SI units, type, size, placement, and free area requirements of this rule. In the case of a random package packed at one place for subsequent sale at another, neither the price per unit of weight nor the total selling price need appear on the package, provided the package label includes both such prices at the time it is offered or exposed for sale at retail.

The exemption shall also apply to uniform weight packages of fresh fruit or vegetables labeled by count, in the same manner and by the same type of equipment as random packages exempted by this section and cheese and cheese products labeled in the same manner and by the same type of equipment as random packages exempted by this section.

- 12.3 **Small Confections** - Individually wrapped pieces of "penny candy" and other confectionery of less than 15 grams or ½ ounce net weight per individual piece shall be exempt from the labeling requirements of this rule when the container in which such confectionery is shipped is in conformance with the labeling requirements of this rule. Similarly, when such confectionery items are sold in bags or boxes items shall be exempt from the labeling requirements of this rule including the required declaration of net quantity of contents, when the declaration of the bag or box meets the requirements of this rule.
- 12.4 **Individual Servings** - Individual-serving size packages of food containing less than 15 grams or 1/2 ounce or less than 15 milliliters or 1/2 fluid ounce for use in restaurants, institutions, and passenger carriers, and not intended for sale at retail, shall be exempt from the required declaration of net quantity of contents specified in this rule.
- 12.5 **Cuts, Plugs, and Twists of Tobacco and Cigars** - When individual cuts, plugs, and twists of tobacco and individual cigars are shipped or delivered in containers that conform to the labeling requirements of this rule such individual cuts, plugs, and twists of tobacco and cigars shall be exempt from such labeling requirements.
- 12.6 **Reusable (Returnable) Glass Containers** - Nothing in this rule shall be deemed to preclude the continued use of reusable (returnable) glass containers provided, that such glass containers ordered after the effective date of this rule shall conform to all requirements of this rule.
- 12.7 **Cigarettes and Small Cigars** - Cartons of cigarettes and small cigars, containing ten individual packages of twenty, labeled in accordance with the requirements of this rule, shall be exempt from the requirements set forth in 9.2, 9.8(a) and 11.4(a).
- 12.8 **Packaged Commodities with Labeling Requirements Specified in Federal Law** - Packages of meat and meat products, poultry products, tobacco and tobacco products, insecticides, fungicides, rodenticides, and alcoholic beverages shall be exempt from those portions of this rule requiring dual declaration in customary units and specifying location and minimum type size of the net quantity declaration provided, that quantity labeling requirements for such products are specified in Federal Law, so as to follow reasonably sound principles of providing consumer information.
- 12.9 **Fluid Dairy Products, Ice Cream and Similar Frozen Desserts** -
- (a) When packaged in 1/2-liquid-pint and 1/2 gallon containers, are exempt from the requirements for stating net contents of 8 fluid ounces and 64 fluid ounces, which may be expressed as 1/2 pint and 1/2 gallon, respectively.
 - (b) When measured by and packaged in measure containers as defined in "Measure Container Code of National Institute of Standards and Technology Handbook 44," in sizes allowable by Method-of-Sale of Commodities are exempt from the requirements of 9.2 declaration of net contents be located within the bottom 30 percent of the principal display panel.
 - (c) Milk and milk products when measured by and packaged in glass or plastic containers of ½ pint, 1 pt, 1 qt, ½ gal, and 1 gal capacities are exempt from the placement requirement of section 8.2, Location, that the declaration of net contents be located within the bottom 30% of the principal display panel, provided other required label information is conspicuously displayed on the cap or outside closure and the required net quantity of contents declaration is conspicuously blown, formed, or molded on, or permanently applied to that part of glass or plastic container that is at or above the shoulder of the container.

- 12.10 **Single-Strength and less than Single-Strength Fruit Juice Beverages, Imitations thereof, and Drinking Water :**
- (a) When packaged in glass, plastic, or fluid milk type paper containers of 8- and 64-fluid-ounce capacity are exempt from the requirements of 5.8(b) to the extent that the net contents of 8-fluid-ounces and 64-fluid-ounces (or 2 quarts) may be expressed as 1/2 pint (or half pint) and 1/2 gallon (or half gallon), respectively.
 - (b) When packaged in glass or plastic containers of 1/2-pint, 1 pint, 1-quart, 1/2-gallon, and 1-gallon capacities, are exempt from the placement requirements of rule 9.2 that the declaration of net contents be located within the bottom 30 percent of the principal display panel; provided that other label information is conspicuously displayed on the cap or outside closure and the required net quantity of contents declaration is conspicuously blown, formed, or molded into or permanently applied to that part of the glass or plastic container that is at or above the shoulder of the container.
- 12.11 **Soft Drink Bottles - Bottles of soft drinks shall be exempt from the placement requirements for the declaration of :**
- (a) identity, when such declaration appears on the bottle closure, and
 - (b) quantity, when such declaration is blown, formed, or molded on or above the shoulder of the container and when all other information required by this article appears only on the bottle closure.
- 12.12 **Multi-unit Soft Drink Packages** - Multi-unit packages of soft drinks are exempt from the requirement for a declaration of:
- (a) responsibility, when such declaration appears on the individual units and is not obscured by the multi-unit packaging, or when the outside container bears a statement to the effect that such declaration will be found on the individual units inside, and
 - (b) identity when such declaration appears on the individual units and is not obscured by the multi-unit packaging.
- 12.13 **Butter** - When packaged in 4 oz, 8 oz, and 1 lb packages with continuous label copy wrapping, butter is exempt from the requirements that the statement of identity and the net quantity declaration be generally parallel to the base of the package. When packaged in 8-ounce and 1-pound units, butter is exempt from the requirement for location of net quantity declaration.
- 12.14 **Eggs** - Cartons containing 12 eggs shall be exempt from the requirement for location of net quantity declaration. When such cartons are designed to permit division in half, each half shall be exempt from the labeling requirements of this rule if the undivided carton conforms to all such requirements.
- 12.15 **Flour** - Packages of wheat flour in conventional 2, 5, 10, 25, 50 and 100 lb packages shall be exempt from the requirement in this rule for location of the net quantity declaration.
- 12.16 **Small Packages** - On a principal display panel of 32 square centimeters or five square inches or less, the declaration of quantity need not appear in the bottom 30 percent of the principal display panel if that declaration satisfies the other requirements of this rule.
- 12.17 **Decorative Containers** - The principal display panel of a cosmetic marketed in a "boudoir-type" container including decorative cosmetic containers of the "cartridge," "pill box," "compact," or "pencil" variety, and those with a capacity of 7.4 mL (1/4 ounce) or less, may be a tear-away tag

or tape affixed to the decorative container and bearing the mandatory label information as required by this rule.

12.18 **Combination and Variety Packages** - Combination packages are exempt from the requirements in this rule for:

(a) Location

(b) Free Area

(c) Minimum Height of Numbers and Letters

12.19 **Margarine** - Margarine in 1-pound rectangular packages, except for packages containing whipped or soft margarine or packages containing more than four sticks, shall be exempt from the requirement in this rule (9.2) for location of the net quantity declaration.

12.20 **Corn Flour and Corn Meal** - Corn flour and corn meal packaged in conventional 5- 10- 25- 50-, and 100-pound bags shall be exempt from the requirement in this rule for location of the net quantity declaration.

12.21 **Prescription and Insulin Containing Drugs** - Prescription and insulin-containing drugs subject to the provisions of Section 503 (b) (1) or 506 of the Federal Food, Drug, and Cosmetic Act shall be exempt from the provisions of this rule.

12.22 Repealed

12.23 **Tint Base Paint** -

(a) Tint base paint may be labeled on the principal display panel, as required by this rule, in terms of a liter, quart or a gallon including the addition of colorant selected by the purchaser, provided that the system employed ensures that the purchaser always obtains a liter, quart or a gallon; and further provided that in conjunction with the required quantity statement on the principal display panel, a statement indicating that the tint base paint is not to be sold without the addition of colorant is presented; and further provided that the contents of the container, before the addition of colorant, is stated in fluid ounces elsewhere on the label.

(b) Wherever the above conditions cannot be met, containers of tint base paint must be labeled with a statement of the actual net contents prior to the addition of colorant in full accord with all the requirements of this rule.

12.24 Repealed

12.25 **Motor Oil in Cans** - Motor oils when packed in cans bearing the principal display panel on the body of the container are exempt from the requirements of section 3 of this rule to the extent that the Society of Automotive Engineers (SAE) viscosity number is required to appear on the principal display panel, provided the SAE viscosity number appears on the can lid and is expressed in letters and numerals in type size of at least 6 mm ¼ inch.

12.26 **Pillows, Cushions, Comforters, Mattress Pads, Sleeping Bags, and Similar Products** - Those products, including pillows, cushions, comforters, mattress pads, and sleeping bags, that bear a permanent label as designated by the Association of Bedding and Furniture Law Officials or by the California Bureau of Home Furnishings shall be exempt from the requirements for location, size of letters or numbers, free area, and the declarations of identity and responsibility. Provided that declarations of identity, quantity, and responsibility are presented on a permanently

attached label and satisfy the other requirements of this rule, and further provided that the information on such permanently attached label be fully observable to the purchaser.

12.27 Commodities' Variable Weights and Sizes - Individual packaged commodities put up in variable weights and sizes for sale intact, and intended to be weighed and marked with the correct quantity statement prior to or at the point of retail sale, are exempt from section 5 of this rule while moving in commerce and while held for sale prior to weighing and marking, provided that the outside container bears a label declaration of the total net weight.

12.28 Packaged Commodities Sold by Count - When a packaged consumer commodity is properly measured in terms of count only, or in terms of count and some other appropriate unit, and the individual units are fully visible to the purchaser, such packages shall be labeled in full accord with this rule except that those containing 6 or less items need not include a statement of count.

13. PACKAGING VARIATIONS TO BE ALLOWED -

13.1 Variation from Declared Net Quantity - Variations from the declared net weight, measure, or count shall be permitted when caused by unavoidable deviations in weighing, measuring, or counting the contents of individual packages that occur in current good manufacturing practice, but such variations shall not be permitted to such extent that the average of the quantity of contents in the packages of a particular commodity, or lot of the commodity that is kept, offered, or exposed for sale, or sold, is below the quantity stated, and no unreasonable shortage in any single package shall be permitted, even though overages in other packages in the same shipment, delivery, or lot compensate for such shortage. Variations above the declared quantity shall not be unreasonably large.

13.2 Variation Resulting from Exposure - Variations from the declared weight or measure shall be permitted when caused by ordinary and customary exposure to conditions that normally occur in good distribution practice and that unavoidably result in change of weight or measure, but only after the commodity is introduced into intrastate commerce, provided that the phrase "introduced into intrastate commerce" as used in this paragraph shall be construed to define the time and the place at which the first sale and delivery of a package is made within the state, the delivery being either

- (a) directly to the purchaser or to his/her agent, or
- (b) to a common carrier for shipment to the purchaser.

This paragraph shall be construed as requiring that, so long as a shipment, delivery, or lot of packages of a particular commodity remains in the possession or under the control of the packager or the person who introduces the package into intrastate commerce, exposure variations shall not be permitted.

14 - 16. RESERVED

17. STATEMENTS OF BASIS, SPECIFIC STATUTORY AUTHORITY AND PURPOSE

The statements of basis and purpose for some rule changes are no longer in the Department files and are presumably in the state archives.

17.1 Adopted November 12, 2013 – Effective December 30, 2013

STAUTORY AUTHORITY:

The Commissioner of Agriculture, is authorized to adopt these permanent rules pursuant to Section 35-14-107(1)(o), and Section 35-14-118, C.R.S.

PURPOSE:

The specific purposes of these rule changes are as follows:

1. Correct typographical errors throughout the rule.
2. Updates language so that this rule is in uniformity with the national standard model law that is published in the National Institute of Standards and Technology Handbook 130 Packaging and Labeling Regulation which is adopted and/or followed by other states.
3. Deletes rule(s) that are no longer necessary and that do not exist in current national model law.

FACTUAL AND POLICY ISSUES:

1. The purpose of Colorado having a uniform packaging and labeling rule in accordance with the national model law described in the National Institute of Standards and Technology Handbook 130 is to achieve, to the maximum extent possible, uniformity in weights and measures laws among each state in order to facilitate within Colorado, and also between each state, fair competition among businesses, to provide uniform and sufficient protection to all consumers, to allow them to make an informed decision and facilitate a value comparison in the purchase of packaged commodities.

This revised rule is now updated to reflect the national standard model regulation developed by the National Conference on Weights and Measures, an organization of state regulatory officials and industry stakeholders. This rule now promotes standardization of packaging and labeling of commodities amongst the states. The revised rule, patterned after the national model law, is what packagers nationally must currently comply with in the other states as well.

Editor's Notes

History

Entire rule eff. 12/30/2013.